

TENTATIVE RULING FOR CIVSB2322839
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Powell v. MacDonald & Cody, LLP, et al

Motion: Compel Further Responses to Special Interrogatories (Set One)

Movant: Michael J. Cody, MacDonald & Cody, LLP and Bryan M. Thomas (Defendants)

Respondent: Sonya Powell, as successor in interest to David Jason Powell, an individual
(Powell/Plaintiff)

ANALYSIS

Meet and Confer

Code of Civil Procedure Sections 2030.300(b) requires that motions to compel further responses to be filed with a “declaration accompanied by a meet and confer declaration under Section 2016.040”. Code of Civil Procedure Section 2016.040 currently states that “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (CCP §2016.040)

Local Rule of Court 560 MOTIONS REMOVED FROM CALENDAR states in pertinent part:

In the Court’s discretion, the Court may, on its own motion, take off calendar the following motions: 1. Motions that are not supported by a declaration establishing that an in person or telephonic meet and confer or other required meet and confer occurred or is deficient. (Local Rule 560)

Elisabeth F. Hazelton, counsel for Defendants, filed a declaration evidencing her good faith attempts to comply with the meet and confer requirements. Unfortunately, her efforts were unsuccessful as counsel for Plaintiff never returned her voicemail or otherwise made themselves available for a phone conference. Counsel for Plaintiff is admonished and cautioned to comply with the meet and confer requirements. The Court shall find that Defendant’s counsel has met their obligations to make a good faith attempt to meet and confer.

Special Interrogatory No. 8 is withdrawn as the parties have reached a stipulation concerning the deposition of Maverick Powell.

Special Interrogatories Nos. 16, 17, and 18 all relate to Plaintiff's income. Plaintiff has placed her finances at issue by claiming loss of income and profits. Plaintiff has waived any privilege objections to this financial information. The financial information sought is certainly relevant considering the allegations and demands made by Plaintiff in the complaint. Finally, the information sought may lead to other discoverable financial evidence.

RULING

1. Defendant's Motion to Compel Further Responses to Special Interrogatories (Set One) is GRANTED as to Request Nos. 16, 17, and 18. Request No. 8 is MOOT, based on the party's stipulation. Plaintiff is ordered to provide code compliant responses, without objection to Questions Nos. 16, 17, and 18 within 20 days.
2. Defendant's Request for Monetary Sanctions is GRANTED. Plaintiff and Rosen & Saba, LLP is ordered to pay \$1200 in sanctions within 20 days.
3. Movant to give Notice.